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**LIMITED SOURCE JUSTIFICATION
FEDERAL ACQUISITION REGULATION (FAR) PART 8 ACQUISITIONS
BRAND NAME**

Multiple Award Schedule (MAS)/Multiple Award Contract
Orders under MAS/General Services Administration Schedules (GSA)/Federal Supply Schedules
(FSS) FAR 8.405-6

Purchase Request Number: HC108925CMTMS09

Contract Number: GS-35F-162DA

Task/Delivery Order Number: **HC1047-25-F-4000**

Procurement Title: Organizational Messaging Service (OMS) Automated Message Handling
System (AMHS) Product Sustainment and Support

Estimated Value: [REDACTED]

Statutory and Regulatory Authority: 10 U.S.C. 3204(a) and FAR 8.405-6(a)(1)(i)(B)

J&A Number: JA25-011 **AMD 01**

Upon the basis of the following justification, I, as the Head of the Contracting Activity (HCA) hereby approve this limited source justification pursuant to the authority of FAR 8.405-6(a)(1)(i)(B). The acquisition referenced herein is conducted under the Statutory Authority of the Multiple Award Schedule Program, 41 U.S.C. 152(3).

1. REQUIRING AGENCY AND CONTRACTING ACTIVITY:

Requiring Agency:

Defense Information Systems Agency (DISA)

Organizational Messaging Branch (DISA/SD43)

1671 Nelson Street, Fort Detrick, Frederick, MD 21702

Contracting Activity:

DISA/Defense Information Technology Contracting Organization (DITCO) - National
Capital Region (NCR)/PS62

P.O. Box 549

Fort Meade, MD 20755

2. NATURE/DESCRIPTION OF ACTION(S) BEING APPROVED:

AMD 01: Increases the estimated value by [REDACTED]. The final contractor negotiated price came in [REDACTED] higher than the Independent Government Cost Estimate (IGCE), and [REDACTED] has been added to include future possible use of FAR clause 52.217-8.

Page 1 of 7 Pages

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The nature of this action is to award a new firm-fixed-price (FFP) task order for a base period of 12 months with four, 12 month option periods. This acquisition request will support the AMHS application software at the National Gateway Center (NGC) – Fort Detrick (NGC-D), NGC-Pentagon, (NGC-P), NGC- Raven Rock Mountain Complex (NGC-R) and the Organizational Messaging Service (OMS) Sustainment Facility (OSF) located at Fort Detrick. This acquisition seeks to provide continued sustainment and development of the OMS Automated Message Handling System (AMHS) product by providing competent and responsive configuration management, test and evaluation, software development and technical support. Fiscal Year (FY) 2025 Operations & Maintenance (O&M) and Defense Working Capital (DWCF) appropriations will be used to fund this effort. Both DISA SD4 and DISA J6 provide funding for this effort and SD4 utilizes DWCF funds and J6 utilizes O&M funds.

3. DESCRIPTION OF SUPPLIES OR SERVICES REQUIRED TO MEET THE AGENCY'S NEEDS:

This acquisition is for a continuation of development and sustainment services, for the OMS AMHS software application, from the Telos Corporation. The OMS AMHS product is currently sustained by task order HC1028-20-F-0170, issued from GSA MAS, GS-35F-16DA. This acquisition will sustain the AMHS software for the three National Gateway Centers (NGCs) and OMS customer sites.

The Government has a critical and continuing need to provide AMHS software development, engineering, testing, and support to the operational systems at the NGCs and OMS customer sites. The AMHS is a proprietary software application with intricate configurations and a consistently evolving security baseline. Therefore, contractor software and engineering support for functionality changes to improve operations and interoperability issues along with Information Assurance and Field Engineer Notice support for this software application is necessary to sustain operations and continued approval to operate recommendations in support of the NGCs and the OMS Program.

AMD 01: The total ceiling of this J&A is now [REDACTED] (value including all options plus the -8 period) based on the negotiated price and the addition of -8 pricing in the total ceiling calculation.

Original Justification: The Period of Performance (PoP) should all options be exercised is 09 March 2025 –08 March 2030, with an estimated total cost is [REDACTED] (value including all options minus the -8 period); and/or [REDACTED] (value including all options plus the -8 period.) FAR clause 52.217-8, Option to Extend Services, will be included in the contract.

4. IDENTIFICATION OF LIMITED SOURCE AUTHORITY AND SUPPORTING RATIONALE:

- (a) Circumstances Justifying Limiting the Source. FAR 8.405-6(a)(1)(i)(B), only one source is capable of providing the supplies or services required at the level of quality required because the supplies or services are unique or highly specialized.

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(b) The Telos Corporation, 19886 Ashburn Road, Ashburn, Virginia 20147, is the only source capable of providing the highly specialized support services and licensing required to operate and maintain the unique, proprietary software that is intrinsic to the success of the Government's mission to provide organizational messaging services to the warfighter. Each Telos engineer is specifically certified to develop, test, operate, update, and maintain the AMHS software and hardware. The Telos AMHS is developed and owned by the Telos Corporation. Due to the possibility of severe system damage, only qualified Telos certified system engineers are authorized to provide installation, data migration and major software updates to the AMHS. AMHS is a military messaging capability that supports both the DISA OMS and Office of the Director of National Intelligence Information Transport Service. Market research confirmed no other commercial products exist that can immediately replace the functionality and meet other mission requirements. Additionally, Telos Corporation is the only source capable of providing the support services and licensing required due to the uniqueness and highly specialized requirements for organizational messaging and support for the OMS Java Message Service (JMS) that is currently in development.

(c) Justification:

(1) The minimum Government requirements.

The minimum requirement is to provide services to develop, engineer, internally test, and support to sustain the operational systems at the NGCs and OMS customer sites. The Combatant Commands, Services and Agencies (CC/S/A) have migrated solely to the use of the Telos AMHS product within the OMS infrastructure. Telos AMHS is the only messaging front end application that has the ability to connect to the OMS messaging switch using Data Secure Transport (DST) and the ability to connect to both OMS JMS and IC JMS messaging switch types. Currently, the Telos AMHS is used exclusively by the CC/S/As to support organizational messaging and is the only AMHS product supported by the OMS Program Office since its inception in 2014.

(2) Proposed sole source contractor.

The proposed sole source contractor for this effort is Telos Corporation. The Telos Corporation developed the AMHS product to provide an organizational messaging frontend to the CC/S/As to interface with the specialized OMS network to send and receive organizational messages. The source code for the AMHS is the proprietary intellectual property of the Telos Corporation. Since this contract involves software development and only the Telos Corporation can access and modify the source code to develop this software; Telos Corporation is the only vendor able to meet this requirement.

(3) Discussion regarding cause of the limited source situation.

No other message handling system is currently accredited to run on the OMS network. A different system would have to be developed, tested, stood up and run in parallel for a period of time before deployment to the OMS field.

(4) Demonstration of limited source.

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Telos Corporation, as the sole developer of the Telos AMHS, is the only contractor known to meet all of the Government's requirements and schedule. Telos owns all data rights and associated intellectual property related to their AMHS product. As a result, Telos is the only company capable of fulfilling the requirement.

(5) Procurement discussion.

This procurement requires access to the AMHS source code which is the proprietary intellectual property of the Telos Corporation. The AMHS product has been sustained by the OMS and former Defense Messaging Service (DMS) PMOs since 2005. When DMS was sunset in 2014 the only interface that was able to survive the transition was the Telos AMHS due to the specialized requirements of the Allied Communications Publication that the OMS network supports. There is currently no other organizational messaging frontend that can interface with the specialized OMS network. Historically, Telos has been the only source that has been capable of performing this requirement. See section 8(a) for procurement history.

(6) Impact

The impact of not procuring and implementing Telos AMHS software would create a significant disruption to the daily operations of the CC/S/As and impact national security. OMS would not have a frontend interface for warfighters to transmit and receive classified, diplomatic, and other critical messages between the DoD, Mission partners and the Intelligence Community. If this capability was lost, then DoD and mission partners could lose the ability to command and control the armed forces of the United States.

5. BEST VALUE DETERMINATION:

By placing an order against a schedule contract using the procedures in FAR PART 8, the ordering activity has concluded that the order represents the best value (as defined in FAR 2.101) and results in the lowest overall cost alternative (considering price, special features, administrative costs, etc.) to meet the Government's needs.

6. MARKET RESEARCH:

Market research was conducted by Program Executive Office (PEO) Services, Command and Control (SD4) from 02 January 2024 to 01 July 2024, and concluded that only the Telos Corporation could perform the work of this contract. Telos is associated with two contract vehicles that could support this effort: GSA's Alliant 2 and GSA MAS, GS-35F-16DA. Telos is not associated with either the Systems Engineering, Technology, and Innovation (SETI) or Encore III Vehicles.

Market research did not uncover alternate manufacturers for the Telos AMHS. Telos Corporation does not authorize resellers of their products, and they do not authorize re-sellers to provide the required technical support on their proprietary system. Additionally, other messaging systems do

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not have the approved AMHS software, hardware, development, and support accreditation with DISA, nor do they have access to maintain the Telos AMHS.

Based on current market research, dated between 02 January 2024 to 01 July 2024, it has been determined that only the Telos Corporation can develop, test, operate, maintain, and update the Telos AMHS system. This requirement is for a Telos Corporation proprietary product and product support. No competitor's functional replacement products currently exist in the market to meet the Government's need. The Government will continue to conduct market research to determine if there are changes in the marketplace that would enable future competitive actions, e.g., there are similar products and/or product support in the marketplace that provide the same functionality, the original equipment manufacturer releases ownership rights of product, or it is economically feasible to procure a new system.

7. ANY OTHER SUPPORTING FACTS: None

8. ACTIONS THE AGENCY MAY TAKE TO REMOVE BARRIERS THAT LED TO THE RESTRICTED CONSIDERATION:

- (a) Procurement History. The current contract, HC1028-20-F-0170, which is performed by Telos Corporation, provides continued maintenance and sustainment support for the DoD and mission partners to ensure system availability, stability, and interoperability of AMHS until the follow on AMHS capability is available. This required a limited source justification pursuant to the authority of FAR 8.405-6(a)(1)(i)(B), approved by the Head of the Contracting Activity, on 20 February 2020.

Current Contract: HC1028-20-F-0170

Vendor: Telos Corporation

Business Type: Large

Contract Value: [REDACTED]

Basis of Award: Sole Source via GSA MAS

Contract Type: Firm Fixed Price (FFP)

Period of Performance: 09 March 2020 to 08 March 2025

Previous Contract: HC1028-17-F-0018

Vendor: Telos Corporation

Business Type: Large

Contract Value: [REDACTED]

Basis of Award: Sole Source via GSA MAS

Contract Type: FFP

Period of Performance: 09 November 2016 to 08 March 2020

- (b) Only the Telos Corporation can develop, internally test, operate, maintain, and update the Telos AMHS system. The AMHS system is proprietary to the Telos Corporation. No competitor's functional replacement products currently exist in the market to meet the Government's need. At this time, there are no actions to remove barriers to full and open

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competition. The Government continues to perform market research in an effort to explore alternative solutions to this and similar requirements.

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TECHNICAL CERTIFICATION: I certify that the supporting data under my cognizance which are included in the J&A are accurate and complete to the best of my knowledge and belief.

NAME: [REDACTED] SIGNATURE/DATE: See separate signature page

TITLE/ORGANIZATION: [REDACTED]

PHONE: [REDACTED]

REQUIREMENTS CERTIFICATION: I certify that the supporting data under my cognizance which are included in the J&A are accurate and complete to the best of my knowledge and belief.

NAME: [REDACTED] SIGNATURE/DATE: See separate signature page

TITLE/ORGANIZATION: [REDACTED]

PHONE: [REDACTED]

CONTRACTING OFFICER CERTIFICATION: I certify that this justification is accurate and complete to the best of my knowledge and belief.

NAME: [REDACTED] SIGNATURE/DATE: See separate signature page

TITLE/ORGANIZATION: [REDACTED]

PHONE: [REDACTED]

HEAD OF THE CONTRACTING ACTIVITY (HCA) APPROVAL: I have reviewed this justification and find it to be accurate and complete to the best of my knowledge and belief. Since this justification does not exceed \$100M, this review serves as approval.

NAME: [REDACTED] SIGNATURE/DATE: See separate signature page

TITLE/ORGANIZATION: [REDACTED]

PHONE: [REDACTED]

ALL QUESTIONS REGARDING THIS JUSTIFICATION ARE TO BE REFERRED TO

[REDACTED]

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